



UNITED STATES ENVIRONMENTAL PROTECTION AGENCY
REGION 6
1201 ELM STREET, SUITE 500
DALLAS, TEXAS 75270

March 23, 2023

The Honorable Marshall Pierite
Chairman
Tunica-Biloxi Indian Tribe
P.O. Box 1589
Marksville, Louisiana 71351

Re: U.S. Environmental Protection Agency Underground Injection Control Program Consultation and Coordination with the Tunica-Biloxi Indian Tribe on Proposed Rule to Take Action on the Louisiana Department of Natural Resource's Class VI Primacy Application

Dear Chairman Pierite:

The purpose of this letter is to extend an invitation to your tribe to engage in government-to-government consultation with the Environmental Protection Agency regarding EPA's future action on the Louisiana Department of Natural Resources (LDNR's) application for primary enforcement responsibility ("primacy") of the Class VI injection well program for Geological Sequestration (GS) of carbon dioxide (CO₂), outside of Indian country, as defined by 18 USC § 1151. This action would amend their existing 1422 authorization, which currently covers Class I, III, IV, and V injection wells, to include primacy for Class VI injection wells.

Based on injection volumes anticipated at future GS projects that would be covered by a LDNR UIC class IV program, a Class VI GS project Area of Review (AoR) will be larger than those delineated for other UIC well classes. Therefore, the CO₂ injected in wells outside of Indian country may transect State, Tribal, and Territorial boundaries. Because of this, EPA is offering an opportunity to engage with our tribal partners to provide early and meaningful communication about this action.

As outlined in the attached consultation plan, EPA anticipates publishing a proposed action in the Federal Register in mid to late-May 2023, which will start a public comment period. When that happens, EPA will again notify you again to provide helpful links to the proposed rulemaking, the LDNR primacy application, and all other documents pertaining to this proposed rule. In the interim, we have provided an enclosure to this letter that provides an overview of key information currently available for this anticipated action.

Tribal consultation will be conducted in accordance with the *EPA Policy on Consultation and Coordination with Indian Tribes*, located at <https://www.epa.gov/sites/production/files/2013-08/documents/cons-and-coord-with-indian-tribes-policy.pdf>. EPA's anticipated timeline for the consultation and coordination period is expected to extend from the date of receipt of this letter to the end of the public comment period on the proposed rulemaking, which is anticipated to be 60 days from the date of publication in the Federal Register.

If you have questions regarding this proposed rulemaking, please feel free to contact me at 214-665-8138 or have your staff contact our Ground Water/UIC Section Chief, Mr. Ken Johnson at johnson.ken@epa.gov or 214-665-8473. If you have questions or wish to engage in government-to-government consultation, please contact Mr. Randy Gee in our Office of Communities, Tribes, and Environmental Assessment at gee.randy@epa.gov or (214) 665-8355. We respectfully request your response on whether you desire to engage in consultation no later than 15 days after the date of publication of this action in the Federal Register.

Sincerely,

A handwritten signature in black ink, appearing to read "Charles W. Maguire", with a stylized flourish at the end.

Charles W. Maguire
Director
Water Division

Enclosures:

Fact Sheet on EPA's UIC Program Requirements for
Geologic Sequestration of CO₂ Final Rule
Fact Sheet on LDNR's Class VI Primacy Application
Projected Consultation and Coordination Timeline

cc: Environmental Director, via email with attachments